

Memo

To: BVSD Board of Education
From: Policy Sub-Committee, BVSD District Accountability Committee (DAC)
Date: February 6, 2024
Re: DAC Guidance on Open Enrollment and Policies JECC and JECC-R

To fulfill the DAC responsibility, C.R.S. 22-22-302(2): *The local school board and the school district accountability committee shall, at least annually, cooperatively determine the areas and issues, in addition to budget issues, that the school district accountability committee shall study and concerning which the committee may make recommendations to the local school board.*

Background and Process: The BVSD board has scheduled open enrollment policies for review in Spring 2024, ahead of the 2024-2025 open enrollment process. The policy subcommittee of the BVSD DAC reviewed the two existing BVSD policies pertaining to open enrollment: [JECC](#), “Assignment of Students to Schools,” (adopted 1991) and [JECC-R](#), “Open Enrollment” (last revised November 2021). Instead of suggesting specific edits to these two policies, our policy sub-committee decided to emphasize some broad commitments and principles that the board might consider as it starts to revise these policies. To inform our analysis, our sub-committee conducted a targeted review of recent research on district choice and open enrollment (cited sources and additional research included as [Appendix A](#)). We drew on our analysis of this research to provide support for these principles, as well as some of our concrete recommendations. We plan to continue studying this issue, as a committee, and would value the opportunity to be engaged in these conversations moving forward (i.e., reviewing draft policy changes, offering additional feedback, etc.).

Principles: Our committee sees open enrollment (OE) options as an important component of education in BVSD. Open enrollment can provide valuable and distinct educational options, help meet the different needs of students and families, and potentially help to retain/increase district enrollment. Students and families can also be more invested in schools they are able to choose. At the same time, open enrollment can also exacerbate inequities, along lines of race, income, language, and special education status. We recommend that any changes to BVSD OE policy prioritize the following five broad principles:

1. Ensure equitable access to open enrollment (OE) opportunities
2. Provide clear, accessible and proactive information to families and parents
3. Address burdens preventing families from accessing OE (i.e., transportation, information)
4. Design open enrollment options to prioritize retention and recruitment of students in BVSD
5. Seek to accommodate school choices, to the extent possible

Initial themes from research: Based on our initial, targeted review of current research on district open enrollment, we identified several key themes:

- **Equity risks of choice:** Choice, when unregulated and poorly designed, largely works to exacerbate inequality and preserve advantage (Bulkley et al., 2021; Sattin-Bajaj & Roda, 2020). Research has identified ways in which choice policies advantage families with more education, income, and resources (Dougherty et al., 2015; Owens, 2017; Pearman & Swain, 2017; Posey-Maddox, 2019). Open enrollment policies can also reproduce patterns of sorting and segregation, as parents with more resources and time are more likely to pursue available choice options (Bailey, 2021; Denice & Gross, 2016; Fong & Faude, 2018; Singer, 2022).

- **Design for equity:** Yet researchers have also highlighted how design features and resources can help to mitigate some equity concerns (Betts & Loveless, 2005; Bulkley et al., 2021). All choice systems depend on information and transportation (Levin, 2002). These two “levers of choice” help to shape who will be able to access choice, and, likewise, how choice programs might mitigate—or exacerbate—inequality.
 - **Information:** Researchers have noted how families rely on social networks and informal sources to gather information on schools, which can replicate inequality (Teske et al., 2006). To better address such inequalities, information should be proactive and targeted, aiming to address less-resourced and less-represented families and communities. Passive information sources (materials that rely on parents to seek information out, like websites) can exacerbate inequalities along lines of income, parental education, and language. In contrast, more proactive forms of recruiting (direct outreach to under-represented families) and different kinds of information (in multiple languages and modalities) can help address issues of access.
 - **Transportation:** Likewise, transportation is key to access (Bierbaum et al., 2021; Bulkley et al., 2021). Providing choices without viable transportation options means that we are only providing choices for *some* families. This is particularly the case in our geographically large and diverse school district. In BVSD, East County and remote mountain communities are often not able to access open enrollment options without some transportation assistance.
- **Enrollment practices and policies:** In addition to information and transportation, other design features of choice can exacerbate inequalities, including online application systems, application processes and clarity of applications, the timing of applications, and lottery processes (Fong & Faude, 2018; Sattin-Bajaj et al., 2018). In particular, the timing of OE processes (BVSD's early January deadline) can exacerbate inequalities, as families “in the know” apply by the deadline, while other families miss the deadline, are not yet in the district, or may be hampered by the complexity of the online application process. Research also emphasizes the challenge of ensuring that choice is accessible for students with special learning needs and IEPs.

Potential recommendations for board consideration:

1. **Long-term and systemic thinking:** We appreciate current efforts to connect open enrollment conversations to other long-term strategic planning efforts in BVSD, including the district’s [Long Range Advisory Committee](#) (LRAC). Broadly, choice can help provide pathways to meet the needs of diverse learners. Allowing families to select schools that help meet the needs and interests of students can improve learning, build family investment, and promote better academic outcomes. We also hope the district can see how choice can be part of long-term strategies to draw families into--or back into--the district, and to help address declining enrollment, particularly in certain parts of the district. We also encourage the board to consider the inter-connected and systemic effects of policies related to choice and open enrollment; solving one problem (e.g., declining enrollment for one neighborhood school) may create other challenges (e.g., impacting resources available to other schools).
2. **Explore transportation options:** Choice, to be equitable, must address the transportation burdens and barriers that prevent families from taking advantage of those choices. We recommend that BVSD consider creative and feasible transportation options, including shared

routes and collaboration with RTD, especially for East County and mountain communities. We also recommend continuing to prioritize transportation for families that qualify for free and reduced lunch. If RTD policies change (currently students ride for free), the district might consider subsidizing bus passes for families that require transportation, and exploring how to partner with RTD to ensure that routes are adequate and efficient. We also recommend widely and clearly communicating transportation programs and options, in advance of OE deadlines, in order to help families better access choices.

3. **Expand Information:** The district-wide open enrollment showcase was a positive step in offering a clear “one stop” access point for families to learn about schools. In addition to this event, we recommend exploring more proactive and targeted outreach to diverse families, in various languages, and in partnership with different community groups. Some families struggle with the online application; enrollment events could help support families in completing an application with in-person support and translation. In general, information should be proactive (aiming to meet families where they are), rather than passive (requiring families to access it).
4. **Clear, easy and transparent process:** While the OE process has been improved in many ways over the last several years, we recommend continuing to prioritize strategies that make applying clear, easy to understand and accessible. All OE emails and forms should be available in multiple languages. Consider additional support to help families understand and access the OE system, including support that does not require making a phone call to the OE office. To the extent possible, make sure the OE process is clearly communicated and easy to understand. In addition, some families recommended making it clearer that families could continue to apply for open enrollment (on a space available basis) after the priority deadline. Other families expressed wanting to make choices available, if there is space available (even if that means moving from 2 classes to 3 at a given school). We also recommend that the district, to the extent feasible, explore ways to make enrollment data, including waitlists, more publicly accessible and understandable, to build trust and clarity with families.
5. **Reconsidering weighted admissions preferences:** Current choice schools have a wide variety of weighted admissions preferences. Consider how lottery preferences can be designed to better promote equity (i.e., prioritizing lower income families, students with IEPs and emerging bilingual students) and perhaps work against it (i.e., prioritizing children of alumni and founders). Consider ways to make such preferences clear, consistent and equity driven. All schools should strive to be open and accessible to all students, including those with specific learning needs and IEPs. In addition, the district might consider how dual-zoned enrollment areas (such as those currently in place at Creekside/Bear Creek, or Bear Creek/Mesa) might offer additional, built-in flexibility for families that might live close to multiple schools.
6. **Space, staffing and flexibility:** OE intersects, in complex ways, with a variety of school-based and district decisions related to potential spaces available at each school, as well as staffing and budgetary decisions (some of which—like teacher contracts—are on fixed deadlines). At the same time, consider how the open-enrollment window could be more accessible (perhaps starting earlier and/or ending later, or not falling over the winter break). In addition, some schools need additional flexibility with enrollment to protect their designs (i.e., dual language schools may need more time to enroll specific families; other school models depend on some existing transportation options). In addition, budget decisions on staffing (and rounds) come early; we recommend exploring how, to the extent possible, to build flexibility into those decisions, so as not to disrupt school staffing. In addition, parents have asked for clearer and

more transparent decision processes to determine if space is available at various schools, and on various waitlists.

7. **Additional and ongoing evaluation:** We recommend BVSD conduct a more comprehensive study of choice: who accepts, and does not, and why? Who never applies? In addition to recent surveys, focus groups and interviews might explore some of the reasons why families did—or did not—pursue different options. Or perhaps investigate how families might be motivated to choose district schools, rather than private options, or also connect with families who have chosen to exit district schools. Any study should also explore the unexpected and secondary impacts of choice policies. For instance, does expanding OE—and access to OE—encourage families from various schools, such as mountain communities, to choose other schools, potentially exacerbating staffing, resources, and programming available in some schools?

Continued questions for discussion: As the board works on open enrollment, we would like to suggest some questions that we hope the board and other stakeholders can continue to explore:

- **How does choice work in the district?** Who is currently accessing open enrollment in BVSD (i.e., in terms of total applicants, and those who actually take up those choices), especially along lines of race, family income, language, special education status, and other considerations? Who accepts, who does not, and why? Who never applies? To what degree are OE decisions motivated by geographical proximity? What do we know (or how could we explore) relationships between various school models and measures of academic success? Finally, and importantly, how is choice impacting the district as a whole?
- **How might choice build enrollment?** How might OE practices be leveraged to address the district's declining enrollment projections? What can we learn about what models, or even what varied aspects of school models, are valued by families? What can we learn from *when* families might be exiting district schools (i.e., at the middle school transition) and the kinds of school models and features that might be motivating those choices? In addition to the recent parent survey commissioned by BVSD, what can we learn about school models, curricular approaches and locations that might draw more families back into district schools?
- **How might we improve access and transportation?** Within our unique district context, what transportation options might be both feasible (logistically and financially) and provide more families with access to choice options? Could targeted or limited bus routes, or shared transportation options across schools, help different families better access key OE options?
- **How might OE coordinate with staffing and budget decisions?** How might OE decisions be better coordinated with school staffing and budget plans? For instance, could OE decisions be made in ways that might allow under-subscribed schools to add another classroom or 'round' (rather than keeping families on the waitlist)? In the case of schools that tend to gain more families/applicants outside OE deadlines, how can budget and staffing plans have flexibility?
- **How can we learn from others?** What are promising practices to build equity and access into choice models? What strategies have other districts used to rethink information, transportation, and choice policies? How have other districts leveraged choice to help improve all schools? How might we frame choice in ways that don't play into a marketized hierarchy of choice options (where some schools are understood as 'losers' and others are 'winners'?)